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DEPARTMENT OF LEGISLATIVE SERVICES
OFFICE OF POLICY ANALYSIS
MARYLAND GENERAL ASSEMBLY

August 11, 2026

Jared DeMarinis, Esq.
State Administrator of Elections
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151 West Street, Suite 200
Annapolis, Maryland 21401-0486

Dear Mr. DeMarinis:

In accordance with § 7-105(b) of the Election Law Article, enclosed are the summaries prepared by the Department of Legislative Services of the following questions that will appear on the ballot at the 2026 general election as a result of legislation passed by the General Assembly at the Special Session of 2026:

Question 1 – Constitutional Amendment
Chapter 155 (House Bill 604) of 2026
Arbitration Reform for State Employees Act of 2026

Question 2 – Constitutional Amendment
Chapter 878 (Senate Bill 933) of 2026
Judiciary Department – Commission on Judicial Disabilities – Temporary Appointment

Question 3 – Constitutional Amendment
Chapter 881 (House Bill 2100) of the Special Session of 2026
Election Districts – General Assembly and Representatives in Congress

As you are aware, during the Special Session, the General Assembly: (1) withdrew and recalled the constitutional amendment proposed by Chapter 156 (Senate Bill 28) of 2026 through the passage of Chapter 882 of the Acts of the Special Session of the General Assembly of 2026; and (2) proposed an additional constitutional amendment through the passage of Chapter 881 of the Acts of the Special Session of the General Assembly of 2026.

QUESTION 3: CONSTITUTIONAL AMENDMENT

Election Districts – General Assembly and Representatives in Congress

Chapter 881 of the Special Session of 2026 (House Bill 2100)

Summary

This constitutional amendment would clarify that the districting standards in Article III, § 4 of the Maryland Constitution apply only for the election of members of the Senate of Maryland and House of Delegates.

Currently, under Article III, § 4 of the Maryland Constitution, each legislative district must consist of adjoining territory, be compact in form, and of substantially equal population. Additionally, due regard is to be given to natural boundaries and the boundaries of political subdivisions. In a 2022 ruling, the Circuit Court for Anne Arundel County held that those districting standards apply to congressional districts as well as districts for the election of members of the General Assembly.

Additionally, the constitutional amendment would establish that nothing in the Maryland Constitution, including the Declaration of Rights, provides applicable criteria for the boundaries of a congressional districting plan.

Finally, the constitutional amendment would grant the General Assembly the power to grant original jurisdiction to the Supreme Court of Maryland to review the congressional districting plans of the State. Under current law, a legal challenge brought in State court to a congressional districting plan must be made in a Maryland circuit court.